

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Anna Steel	Team: Team # 8	CCRB Case #: 200811558	☒ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Saturday, 06/07/2008 1:05 AM	Location of Incident: 530 West 27th Street	18 Mo. SOL 12/7/2009	Precinct: 10		
Date/Time CV Reported Sun, 08/10/2008 11:49 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Sun, 08/10/2008 11:50 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Matthew Mcclusky	07514	941071	010 PCT
2. SGT Vincent Fontana	03556	931673	010 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Matthew Mcclusky	Abuse: PO Matthew Mcclusky questioned § 87(2)(b)	A . Exonerated
B . POM Matthew Mcclusky	Force: PO Matthew Mcclusky used physical force against § 87(2)(b)	B . Exonerated
C . SGT Vincent Fontana	Force: Sgt. Vincent Fontana used physical force against § 87(2)(b)	C . Exonerated
D . POM Matthew Mcclusky	Abuse: PO Matthew Mcclusky searched § 87(2)(b)	D . Unfounded
E . POM Matthew Mcclusky	Abuse: PO Matthew Mcclusky frisked § 87(2)(b)	E . Unsubstantiated
F . POM Matthew Mcclusky	Abuse: PO Matthew Mcclusky threatened to arrest § 87(2)(b)	F . Exonerated

Synopsis

On June 7, 2008, at approximately 1:00 AM, § 87(2)(b) was standing in front of 530 West 27th Street holding a clear cup of wine. He was approached by an officer, identified through the investigation as PO Matthew McClusky of the 10th Precinct, who asked him what was in his cup (**Allegation A**). PO McClusky then asked for § 87(2)(b)'s identification. § 87(2)(b) disputed PO McClusky's reasons for requesting his ID and an additional officer, identified through the investigation as Sgt. Vincent Fontana of the 10th Precinct, responded to the scene. PO McClusky grasped § 87(2)(b)'s arm, twisted it behind his back and pushed him against a wall (**Allegation B**). § 87(2)(b) alleged that Sgt. Fontana forced him to the ground (**Allegation C**). PO McClusky then allegedly placed his foot on the back of § 87(2)(b)'s head, pressing his forehead onto the ground (**Within Allegation B**) while Sgt. Fontana pulled his arms behind his back and handcuffed him. PO McClusky searched § 87(2)(b)'s pants pockets (**Allegation D**) and removed his keys, wallet and metrocard. PO McClusky then searched the front pocket of § 87(2)(b)'s hooded sweatshirt (**Within Allegation D**) and patted him down over his clothing (**Allegation E**). PO McClusky briefly sat in Sgt. Fontana's police vehicle while conducting a warrant check. PO McClusky then returned and issued § 87(2)(b) two summonses, one for § 87(2)(b) and a second for § 87(2)(b). PO McClusky allegedly instructed § 87(2)(b) to leave before he was arrested (**Allegation F**). § 87(2)(b) then left the scene of the incident and returned to his residence.

§ 87(2)(g) It is therefore recommended that Allegation A be closed, **Exonerated**. § 87(2)(g)
§ 87(2)(g) It is therefore recommended that Allegation B and C be closed, **Exonerated**. § 87(2)(g)
§ 87(2)(g) It is therefore recommended that Allegation D be closed, **Unfounded**. § 87(2)(g)
§ 87(2)(g) It is therefore recommended that Allegation E be closed, **Unsubstantiated**. § 87(2)(g)
§ 87(2)(g) It is therefore recommended that Allegation F be closed, **Exonerated**.

§ 87(2)(g)

Summary of Complaint

§ 87(2)(b)

§ 87(2)(b) is § 87(2)(b) years old. He is a white male who is § 87(2)(b) and has brown hair and brown eyes. § 87(2)(b) filed a complaint with the CCRB via the online website on August 10, 2008 (encl. 4a – 4b). § 87(2)(b) was interviewed at the CCRB on September 9, 2008 (encl. 5a – 5g). § 87(2)(b) provided a telephone statement to the CCRB on April 28, 2009 (encl. 6). § 87(2)(g)

On June 7, 2008, at approximately 1:00 AM, § 87(2)(b) left an art party, located at 530 West 27th Street, to make a call using his cellular telephone. § 87(2)(b) was wearing jeans and a hooded sweatshirt. In his interview with the CCRB (encl. 5a – 5g), § 87(2)(b) stated that he left the party with a paper cup of wine and exited onto the street via an elevator. In his telephone statement to the CCRB (encl. 6), § 87(2)(b) stated that he was holding a clear cup of white wine. § 87(2)(b) was alone. He stood near the elevator on the sidewalk and called his acquaintance. An officer, identified through the investigation as PO Matthew McClusky from the 10th Precinct approached him. § 87(2)(b) described PO McClusky as a white male who was about 5'8" to 5'9" tall, had light balding hair, appeared to be in his later thirties to early forties and was in uniform. PO McClusky was on foot and there were no other officers in the area. PO McClusky asked § 87(2)(b) what was in the cup he was holding (**Allegation A**). § 87(2)(b) was distracted by his telephone conversation and did not immediately respond. PO McClusky then asked § 87(2)(b)

§ 87(2)(b) for his identification. § 87(2)(b) told PO McClusky that since he did not see a police vehicle in the area, he did not see how PO McClusky would be unable to conduct a warrant check on him and thus did not understand why PO McClusky would want his ID. § 87(2)(b) was unable to estimate how many alcoholic beverages he had consumed prior to the incident, but stated during his interview that he was not intoxicated.

PO McClusky asked § 87(2)(b) whether he wanted to ‘do it the hard way?’ PO McClusky then grasped § 87(2)(b)’s left arm, twisted it behind his back and pushed him against a wall (**Allegation B**). In his telephone statement to the CCRB (encl. 6), § 87(2)(b) stated that his chest and wall made contact with the wall. A marked police vehicle responded to the scene at this time. Although § 87(2)(b) asserted that there were three officers inside this vehicle, the investigation determined that the vehicle bore only one officer, identified through the investigation as Sgt. Vincent Fontana of the 10th Precinct. § 87(2)(b) alleged that PO McClusky held his arm while Sgt. Fontana forced him to bend to his knees, causing him to fall face first onto the ground (**Allegation C**). PO McClusky then placed his foot on the back of § 87(2)(b)’s head, pressing his forehead onto the ground (**Within Allegation B**) while Sgt. Fontana pulled his arms behind his back and handcuffed him. In his telephone statement to the CCRB (encl. 6), § 87(2)(b) explained that his left cheek was pressed onto the pavement and that he was unable to move his head. § 87(2)(b) told the officers that he would give them his ID and that they did not need to do this. § 87(2)(b) did not specify whether the officers responded to his new willingness to provide his ID. § 87(2)(b) stated that he never struggled or attempted to get away from the officers.

PO McClusky assisted § 87(2)(b) into a standing position. In his complaint to the CCRB (encl. 4a – 4b), § 87(2)(b) alleged that he was thrown against the wall at this time. § 87(2)(b) did not mention this in his interview with the CCRB (encl. 8a – 8g). PO McClusky then searched § 87(2)(b)’s front and rear pants pockets (**Allegation D**) and removed his keys, wallet and metrocard. In his telephone statement to the CCRB (encl. 6), § 87(2)(b) explained that PO McClusky put his belongings on the ground beside him. PO McClusky then searched the front pocket of § 87(2)(b)’s hooded sweatshirt (**Within Allegation D**) and patted him down over his clothing (**Allegation E**). In his complaint to the CCRB (encl. 4a – 4b), § 87(2)(b) alleged that he was searched by multiple officers and did not mention being frisked. At the conclusion of the search and frisk, PO McClusky instructed § 87(2)(b) to sit on the ground against the wall next to 530 West 27th Street. § 87(2)(b) felt that the left side of his forehead was scraped and bleeding. In his telephone statement (encl. 6), § 87(2)(b) stated that he discovered this injury when he returned to his residence later that evening. Following the incident, § 87(2)(b) also discovered that his left shoulder and left knee were bruised. He attributed these bruises to being forced to the ground. PO McClusky went to the police vehicle and returned twenty minutes later.

When PO McClusky returned, he gave § 87(2)(b) a summons for § 87(2)(b) and another summons for § 87(2)(b). When § 87(2)(b) later looked at the back of the summons issued for § 87(2)(b), he saw that PO McClusky had written that he had been observed blocking a building entrance, shouting obscenities and harassing those passing by. § 87(2)(b) asserted that he never did any of these things, though he acknowledged that people passed by him during the incident. § 87(2)(b) observed from PO McClusky’s shield that his name was “McClusky” at this time. In his telephone statement to the CCRB (encl. 6), § 87(2)(b) explained that he picked up his keys, metrocard and wallet at this time. PO McClusky then told § 87(2)(b) to leave before he was arrested (**Allegation F**). PO McClusky did not provide a reason for which § 87(2)(b) could theoretically be arrested. In his telephone statement (encl. 6), § 87(2)(b) said that he returned to his residence immediately after the incident. § 87(2)(b) photographed his injuries when he returned to his residence. These photographs, provided to the investigator following his interview, depicted an abrasion on his left temple which was about three-quarters of an inch in length; a reddish bruise on his left shoulder which was about an inch in diameter; and a reddish bruise on his left knee which was about half an inch in diameter (encl. 5c – 5e). In his telephone statement to the CCRB (encl. 6), § 87(2)(b) confirmed that he did not seek medical treatment following the incident. He explained that he did think that his injuries were serious enough to necessitate medical attention.

Results of Investigation

Police Officer Statements:

PO Matthew McClusky

PO Matthew McClusky is § 87(2)(b) years old. He is a white male how is § 87(2)(b) and has brown hair and blue eyes. PO McClusky is assigned to the 10th Precinct and has been a member of the service for three years. On the day of the incident, PO McClusky was assigned to a night club detail in Chelsea and worked from 10:00 PM to 6:35 AM in uniform and on foot. He was not assigned a partner. PO McClusky's memobook (encl. 7a – 7b) notes that he stopped one male at 1:00 AM in front of 530 West 27th Street.

Police Reports

PO McClusky issued summons no. § 87(2)(b) to § 87(2)(b) for § 87(2)(b) in front of 530 West 27th Street (encl. 8a). PO McClusky also issued summons no. § 87(2)(b) to § 87(2)(b) for § 87(2)(b), and noted that he was observed blocking a doorway, yelling at pedestrians and yelling and cursing (encl. 8a – 8b).

CCRB Statement

PO McClusky was interviewed at the CCRB on November 18, 2008 (encl. 9a – 9b), at which time he provided the following statement: On June 7, 2008, at approximately 1:00 AM, PO Matthew McClusky was conducting foot patrol in the vicinity of West 27th Street and 10th Avenue in Manhattan. PO McClusky observed a male, subsequently identified through the incident as § 87(2)(b) under an awning in front of 530 West 27th Street. PO McClusky did not recall whether § 87(2)(b) was sitting or standing. § 87(2)(b) was not interacting with any other individuals. § 87(2)(b) was holding a clear cup containing a red liquid. In his experience and training, PO McClusky knew that red beverages are typically alcoholic. PO McClusky approached § 87(2)(b) and requested his ID. § 87(2)(b) immediately began yelling that he had done nothing wrong. § 87(2)(b) tried to walk away from PO McClusky down the sidewalk towards 11th Avenue. PO McClusky stepped in front of § 87(2)(b) and held his arms in front of his body to prevent § 87(2)(b) from leaving and in order to maintain distance between them. PO McClusky explained to § 87(2)(b) that he could not drink alcoholic beverages on the street.

§ 87(2)(b) began pushing PO McClusky's arms to the side and away from him while continuing to shout and then curse in an increasingly disorderly manner. § 87(2)(b) was yelling such things as, "Why the fuck are you stopping me?" It was dark out, PO McClusky did not know whether § 87(2)(b) possessed any weapons or had any open warrants. § 87(2)(b)'s behavior and his attempts to leave the area increased PO McClusky's suspicions and led him to fear for his safety. PO McClusky decided to frisk § 87(2)(b) for these reasons. PO McClusky's supervisor, Sgt. Vincent Fontana, approached the scene at this time in a marked police vehicle. Sgt. Fontana exited his vehicle. PO McClusky believed that Sgt. Fontana may have responded to the scene with his assigned operator, but PO McClusky could not identify this officer. PO McClusky did not recall whether any additional officers responded to the scene. § 87(2)(b) continued to push PO McClusky's arms away from him. PO McClusky then grasped § 87(2)(b)'s arms, turned him around and instructed him to face the wall. PO McClusky asked § 87(2)(b) to place his hands behind his back for his safety. PO McClusky and Sgt. Fontana placed § 87(2)(b) against the wall in order to secure him in handcuffs. The officers never brought § 87(2)(b) to the ground.

PO McClusky frisked § 87(2)(b) over his outermost garments and the front and rear pockets to ensure that there was nothing bulky or large in these pockets or under his clothing which could be used to harm him. Following the frisk, PO McClusky asked § 87(2)(b) where his ID was located. § 87(2)(b) told him that his ID was in his wallet, but PO McClusky did not recall in which pocket § 87(2)(b)'s wallet was reportedly located. PO McClusky asked § 87(2)(b) whether he could remove his ID and § 87(2)(b) replied that this was fine. PO McClusky removed his wallet, but did not feel inside any other pockets or

remove any other items from § 87(2)(b)'s pockets. After obtaining his ID, PO McClusky and Sgt. Fontana assisted § 87(2)(b) into a seated position on the sidewalk in front of 530 West 27th Street. PO McClusky conducted a warrant check with negative results. At some point, PO McClusky examined the clear cup he had observed in § 87(2)(b)'s possession and determined that it contained red wine. PO McClusky also informed § 87(2)(b) that both harassment and pushing a police officer are arrestable offenses. PO McClusky exercised his discretion and did not arrest § 87(2)(b).

PO McClusky issued § 87(2)(b) a summons for § 87(2)(b) and a summons for § 87(2)(b). PO McClusky did not recall the specific subsection § 87(2)(b) he noted on the summons. PO McClusky stated that he could theoretically have cited § 87(2)(b) for fighting, cursing, causing a general alarm to those passing by or blocking the sidewalk because he was in front of a doorway under an awning. PO McClusky did not recall whether § 87(2)(b) interacted with any pedestrians during the incident. § 87(2)(b) never complained of any injuries during the incident. The investigator presented PO McClusky with a photograph depicting an abrasion on § 87(2)(b)'s left temple. PO McClusky stated that he never saw this injury during the incident and asserted that nothing happened during the incident which could have resulted in this injury. The investigator pressed PO McClusky with photographs depicting reddish bruises on his left shoulder and left knee. When asked how § 87(2)(b) may have sustained these injuries, PO McClusky asserted that they were not caused as a result of the incident. After issuing § 87(2)(b) the summonses, PO McClusky released his handcuffs and § 87(2)(b) left the scene.

Sgt. Vincent Fontana

Sgt. Vincent Fontana is § 87(2)(b) years old. He is a white male who is § 87(2)(b), is baldheaded and has blue eyes. Sgt. Fontana is assigned to the 10th Precinct and has been a member of the service for seven years. On the day of the incident, Sgt. Fontana was the assigned cabaret supervisor and worked from 9:00 PM to 6:57 AM in uniform and in radio motor patrol vehicle 2095. There were no entries in Sgt. Fontana's memobook (encl. 10) regarding the incident.

CCRB Statement

Sgt. Fontana was interviewed at the CCRB on April 29, 2009 (encl. 11a – 11b), at which time he provided the following statement: On June 7, 2008, at approximately 1:10 AM, Sgt. Vincent Fontana was conducting routine patrol in the vicinity of West 27th Street and 10th Avenue in Manhattan. He was the assigned cabaret detail supervisor and was patrolling all the bars and nightclubs within the confines of the 10th Precinct. Sgt. Fontana did not believe he was assigned an operator on the day of the incident. Sgt. Fontana observed PO Matthew McClusky, who was also assigned to a cabaret detail, struggling with a male, subsequently identified through the incident as § 87(2)(b) in front of 530 West 27th Street. Sgt. Fontana had not been called to this location and there were no other officers at the scene. The investigator referred Sgt. Fontana to a statement written on the rear of a disorderly conduct summons later issued to § 87(2)(b) which stated that § 87(2)(b) had been observed blocking a doorway, yelling at pedestrians, and cursing and yelling. Sgt. Fontana stated that he did not make this observation, as this observation was made prior to his arrival. Sgt. Fontana saw that PO McClusky was attempting to use a wall as a means against which to handcuff § 87(2)(b). PO McClusky was trying to pull § 87(2)(b)'s arms behind his back and § 87(2)(b) resisted by pulling his arms away and flailing his upper body.

Sgt. Fontana exited his vehicle and approached the struggle. § 87(2)(b) was screaming, but Sgt. Fontana did not recall what § 87(2)(b) was saying or whether he was cursing. Sgt. Fontana grasped one of § 87(2)(b)'s arms while PO McClusky grasped his other arm. Sgt. Fontana instructed § 87(2)(b) to stop resisting. § 87(2)(b) continued to pull away for a short period of time. The officers pulled § 87(2)(b)'s arms behind his back and secured him in handcuffs. § 87(2)(b) was never brought to the ground during the struggle and was handcuffed in a standing position. The investigator presented Sgt. Fontana with a photograph depicting an abrasion on § 87(2)(b)'s left temple. Sgt. Fontana never observed this injury and affirmed that nothing occurred during the incident which could have resulted in this injury. Sgt. Fontana stated that, had § 87(2)(b) sustained some sort of injury, Sgt. Fontana would have secured medical treatment for him. Once § 87(2)(b) was handcuffed, PO McClusky frisked § 87(2)(b) to ensure that he was not carrying any weapons. Sgt. Fontana explained that § 87(2)(b)'s resistance led the officers to both

fear for their safety and also fear that he was armed in some way. This fear was also based on § 87(2)(b)'s refusal to comply with the officers' instructions to give up his arms. Sgt. Fontana and PO McClusky assisted § 87(2)(b) into a seated position on the ground, at which point he began to calm down. Sgt. Fontana did not recall anything substantive about § 87(2)(b)'s demeanor at this point during the incident.

PO McClusky removed § 87(2)(b)'s ID from his pocket. Sgt. Fontana did not see PO McClusky feel inside any additional pockets, though he could not recall from which pocket § 87(2)(b)'s ID was removed. Sgt. Fontana confirmed that it was the officers' intention to issue § 87(2)(b) a summons at this point. Sgt. Fontana explained that, in order to do so, the officers had to verify § 87(2)(b)'s identity and PO McClusky therefore removed § 87(2)(b)'s ID from his pocket. Sgt. Fontana did not recall whether PO McClusky asked § 87(2)(b) if he could remove his ID from his pocket. The officers then conducted a warrant check, though Sgt. Fontana did not recall whether this check was conducted via the radio or by using the computer in his vehicle. The warrant check yielded negative results and § 87(2)(b) was issued two summonses. At the time of his interview, Sgt. Fontana did not recall whether § 87(2)(b) was observed urinating in public or if he was observed in possession of an open container, but stated that he would have been issued a summons for one of these violations. Sgt. Fontana did not recall observing any alcoholic beverage or containers in § 87(2)(b)'s vicinity. Sgt. Fontana did not recall whether he or PO McClusky informed § 87(2)(b) that he could be arrested. Sgt. Fontana confirmed that a summons is issued in lieu of an arrest and that the officers exercised their discretion in not arresting § 87(2)(b). No other officers responded to the scene during the incident.

SPRINT Record:

According to a SPRINT record generated on June 7, 2008 (encl. 12a – 12b), at 1:02 AM, a foot post from the 10th Precinct reported a male stopped in front of 530 West 27th Street. The foot post noted that the male was summonsed.

Police Department Documents:

10th Precinct Roll Call

According to the roll call for June 6, 2008 (encl. 13a – 13d), PO McClusky was assigned to a foot post and Sgt. Fontana was the assigned detail supervisor. The roll call noted that Sgt. Fontana was assigned to radio motor patrol vehicle 2095 and no other officers in the roll call were listed as being also assigned to this vehicle.

Disposition of Relevant Summonses:

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian Criminal Conviction History

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Notice of Claim Inquiry

As of April 29, 2009, the Comptroller's Bureau of Law and Adjustment determined that § 87(2)(b) has not filed a notice of claim with regard to the incident (encl. 14).

Officer CCRB Statement

PO McClusky has been a member of the service for three years and has had no CCRB allegations substantiated against him (encl. 3a). Sgt. Fontana has been a member of the service for six years and in

CCRB case 200507325, a question allegation and a search allegation were substantiated against him, resulting in the imposition of command discipline (encl. 3b).

Conclusions and Recommendations

Officer Identification

Statements and documentary evidence identified PO McClusky and Sgt. Fontana as present at the scene of the incident. As PO McClusky admitted to questioning, frisking and searching § 87(2)(b) and as both PO McClusky and Sgt. Fontana admitted to using force against § 87(2)(b) these allegations have been pleaded against them. § 87(2)(b) alleged that an officer also threatened him with arrest. § 87(2)(b) described this officer as white male who was about 5'8" to 5'9" tall, had light balding hair, appeared to be in his later thirties to early forties and was named 'McClusky.' § 87(2)(g)

Although § 87(2)(b) asserted that additional officers responded to the scene with Sgt. Fontana, the investigation found no evidence of any officers working with Sgt. Fontana on the day of the incident. Sgt. Fontana stated that he did not believe he was assigned an operator (encl. 11a – 11b), his memobook did not show that he was assigned an operator (encl. 10) and the roll call for the day of the incident showed that no officers were assigned to Sgt. Fontana's police vehicle (encl. 13a – 13d). The investigation therefore determined that PO McClusky and Sgt. Fontana were the only officers present during the incident. § 87(2)(g)

Undisputed Facts

It is undisputed that § 87(2)(b) was standing in front of 530 West 27th Street holding a cup of wine. It is undisputed that PO McClusky questioned § 87(2)(b). It is undisputed that PO McClusky and Sgt. Fontana used force against § 87(2)(b) to restrain him in handcuffs. It is undisputed that PO McClusky frisked § 87(2)(b) felt inside his pocket and removed his ID.

Disputed Facts

§ 87(2)(g)

Assessment of Evidence

According to § 87(2)(b) PO McClusky approached him and asked what was in the cup he was holding. PO McClusky stated that he first requested § 87(2)(b)'s ID. However, PO McClusky confirmed that he suspected § 87(2)(b) to be holding an alcoholic beverage and stated that he told § 87(2)(b) that he could not drink alcoholic beverages in the street after requesting his ID. § 87(2)(g)

While § 87(2)(b) stated in his interview with the CCRB (encl. 5a – 5g) that he was holding a paper cup of wine, he acknowledged during a later telephone statement to the CCRB (encl. 6) that the cup was clear. § 87(2)(g)

According to PO McClusky, § 87(2)(b) immediately began to yell and curse after his identification was requested, and then attempted to evade PO McClusky by walking down the sidewalk towards 11th Avenue. § 87(2)(b) denied yelling or cursing and did not admit to walking away during the incident. However, § 87(2)(b) did acknowledge that he did not immediately respond to PO McClusky's request for his ID because he was distracted by his telephone conversation. § 87(2)(g)

§ 87(2)(g)
[REDACTED]

§ 87(2)(b) alleged that Sgt. Fontana brought him to the ground by forcing his knees to bend, causing him to fall forward, and asserted that PO McClusky then pressed his foot on his head. § 87(2)(g)

[REDACTED]

§ 87(2)(b) claimed that, as a result of being brought to the ground, he sustained an abrasion to his left shoulder, left knee and left temple. When presented with a photograph of the abrasion § 87(2)(b) sustained on his left temple, both PO McClusky and Sgt. Fontana stated that they did not observe this injury and that nothing which occurred during the incident could have resulted in the injury. § 87(2)(g)

[REDACTED]

§ 87(2)(b) alleged that PO McClusky searched the front and rear pockets of his pants, removing his keys, wallet and metrocard, and then searched the front pocket of his hooded sweatshirt. PO McClusky then frisked him by patting him over his outermost garments. § 87(2)(g)

[REDACTED] According to PO McClusky and Sgt. Fontana, § 87(2)(b) was frisked after he was handcuffed. In order to verify his identity, PO McClusky removed § 87(2)(b)'s wallet from his pocket and never felt in any other pockets while doing so. PO McClusky explained that he asked § 87(2)(b) if he could remove his wallet from his pocket and stated that § 87(2)(b) replied affirmatively.

§ 87(2)(g)
[REDACTED]

According to § 87(2)(b) PO McClusky told him to leave the area before he was arrested after issuing him two summonses. Neither PO McClusky nor Sgt. Fontana recalled informing § 87(2)(b) that he could be arrested. However, Sgt. Fontana confirmed that a summons is issued in lieu of an arrest. § 87(2)(g)

[REDACTED]

Allegation A. PO Matthew McClusky questioned § 87(2)(b)

According to Barry Kamins' *New York Search and Seizure Law*, an officer may ask accusatory questions which imply the assumption of criminality when "there is a founded suspicion that criminal activity is afoot" (encl. 1a – 1f). In this case, PO McClusky approached § 87(2)(b) upon observing that he was holding a clear cup containing a red liquid. PO McClusky stated that, in his experience and training, red beverages are typically alcoholic. § 87(2)(g)

It is therefore recommended that Allegation A be closed, **Exonerated**.

Allegation B. PO Matthew McClusky used physical force against § 87(2)(b)

Allegation C. Sgt. Vincent Fontana used physical force against § 87(2)(b)

§ 87(2)(g)

Barry Kamins' *New York Search and Seizure Law* specifically notes that "appropriate force can be used to restrain the suspect" during an investigative inquiry (encl. 1a – 1f). § 87(2)(g)

Patrol Guide Procedure 203-11 authorizes an officer to use that amount of force necessary to overcome resistance and effect an arrest (encl. 2). § 87(2)(g)

§ 87(2)(g)

It is therefore recommended that Allegation B and C be closed, **Exonerated**.

Allegation D. PO Matthew McClusky searched § 87(2)(b)

§ 87(2)(g)

It is therefore recommended that Allegation D be closed, **Unfounded**.

Allegation E. PO Matthew McClusky frisked § 87(2)(b)

PO McClusky stated that he frisked § 87(2)(b) over his outermost garments and the front and rear pockets of his pants after handcuffing him. Barry Kamins' *New York Search and Seizure Law* notes that "New York courts require that, in addition to a reasonable suspicion that justifies a stop of the individual, the officer must entertain an independent and reasonable suspicion that the suspect is armed and dangerous" (encl. 1a – 1f). § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

However, some Courts have upheld the right of a police officer conduct a frisk when, during the course of an investigation, the individual's conduct led the officer to fear for his safety (encl. 1a – 1f). “These cases address...the legitimate concern of permitting the police to pursue their investigations without the fear of violence” (encl. 1a – 1f). § 87(2)(g)

As noted in Barry Kamins’ *New York Search and Seizure Law*, “courts must be vigilant in focusing on the dual requirements for a frisk...Otherwise, safety concerns and self-protective procedures could swallow the rule itself” (encl. 1a – 1f). § 87(2)(g)

It is therefore recommended that Allegation E be closed, **Unsubstantiated**.

Allegation F. PO Matthew McClusky threatened § 87(2)(b) with arrest.

§ 87(2)(g)

Sgt. Fontana confirmed that a summons is issued in lieu of an arrest and both PO McClusky and Sgt. Fontana stated that they exercised their discretion in not arresting § 87(2)(b) for the offenses for which he was summonsed. § 87(2)(b) acknowledged in his complaint to the CCRB (encl. 4a – 4b) that he was engaged in a crime by holding an open container when approached by PO McClusky. § 87(2)(g)

§ 87(2)(g)

It is therefore recommended that Allegation F be closed, **Exonerated**.

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: